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Case Number: 25NWCV03797 Hearing Date: July 2, 2026 Dept: P

RUSS BASSETT CORP. v. LINDA BASSETT, ET AL.

CASE NO.: 25NWCV03797

HEARING: 07/02/2026 @ 9:30 AM

#10

TENTATIVE ORDER

I.

Defendants' demurrer to the second cause of action in the first amended complaint is MOOT.

II.

Defendants' demurrer to the third, fourth, and fifth causes of action is SUSTAINED with 30 days LEAVE TO AMEND.

III.

Defendants' motion to strike portions of the first amended complaint is MOOT.

Moving party to give notice.

Defendants Linda Bassett, as Trustee of The Bassett Family Trust, and Linda Bassett, individually, (collectively, Defendants) demur to certain causes of action in the first amended complaint (FAC) and move to strike portions of the FAC.

Background

On October 24, 2025, Plaintiff Russ Bassett Corp.

(Plaintiff) filed this breach of contract action against Defendants and Does 1 through 20. On January 20, 2026, Plaintiff filed the operative FAC. The FAC alleges that on January 23, 2013, Plaintiff and Defendants entered into a written lease (Lease) concerning the property located at 8189 Byron Road, Whittier, California 90606 (Property). (FAC, ¶¶ 3, 6.) The FAC alleges that Defendants breached the Lease by interfering with Plaintiff's quiet enjoyment of the Property, delaying making repairs, and making threats to Plaintiff. (FAC, ¶¶ 8-12.) The FAC asserts five causes of action: (1) breach of contract, (2) breach of implied covenant of good faith and fair dealing, (3) libel and/or slander, (4) intentional interference with prospective economic relations, and (5) declaratory relief.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law." (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, *supra*, 147 Cal.App.4th at p. 747.) A complaint will be upheld against a demurrer if it pleads facts sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

Code of Civil Procedure

section 430.10, subdivision (f) provides for a demurrer where a pleading is uncertain. Demurrers for uncertainty are disfavored and are only sustained where a pleading is so incomprehensible a defendant cannot reasonably respond. (A.J. Fistes v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695; Khoury v. Maly's of California (1993) 14 Cal.App.4th 612, 616.)

“Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) A “[p]laintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Ibid.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the demurring party meet and confer in person, by telephone, or by video conference at least five days before the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve a declaration stating either: (a) “The means by which the demurring party met and conferred...and that the parties did not reach an agreement resolving the objections raised in the demurrer” or (b) “[t]hat the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (a)(3).)

The parties have adequately met and conferred. (Blank Decl., ¶¶ 3-5.)

Discussion

Defendants demur to the second, third, fourth, and fifth causes of action on the grounds that the FAC fails to state facts sufficient to constitute the causes of action or that the causes of action are uncertain.

Second Cause of Action – Breach of the Implied Covenant of Good Faith and Fair Dealing

Defendants demur to the second cause of action on the grounds that it fails to state facts sufficient to constitute a cause of action.

In opposition, “plaintiff concedes the Second Cause of Action is superfluous and the plaintiff has dismissed it without prejudice.” (Opp., 2:4-6.)

Accordingly, Defendants' demurrer to the second cause of action is MOOT.

Third Cause of Action: Libel
and/or Slander; Fourth Cause of Action: Intentional Interference with
Prospective Economic Relations

Defendants demur to the third and fourth causes of action on
the grounds that they are duplicative on the contractual claims.

As to the third cause of action, the FAC alleges "[w]ithin
the last six months, defendants, and each of them, made written and/or oral
statements to two vendors or plaintiff, to wit, Chubb Insurance and ServPro, in
which the defendants, and each of them, asserted to said vendors that plaintiff
had made intentional misrepresentations to said third party and/or that
plaintiff had concealed material facts from its landlord under the Lease and
that plaintiff had failed to comply with its obligations under the Lease."
(FAC, ¶ 23.) Additionally, the FAC alleges the statements were false when made.
(FAC, ¶ 24.)

As to the fourth cause of action, the FAC alleges: "Defendants,
and each of them, have engaged in conduct designed and intended to disrupt the
economic relationship between plaintiff and said third parties, including, but
not limited to, contacting said third parties and making false and inflammatory
statements about plaintiff." (FAC, ¶ 30.)

In Plaintiff's contractual claims, among other things, the
FAC alleges Defendants breached the Lease by "making contact with vendors of
plaintiff and disparaging plaintiff and making unreasonable demands upon said
vendors." (FAC, ¶ 12.)

"If...allegations do not go beyond the statement of a mere
contract breach and, relying on the same alleged acts, simply seek the same
damages or other relief already claimed in a companion contract cause of
action, they may be disregarded as superfluous as no additional claim is
actually stated." (Careau & Co. v. Security Pacific Business Credit,
Inc. (1990) 222 Cal.App.3d 1371, 1395.) Additionally, Defendants argue that
the third and fourth causes of action do not plead facts sufficient to survive
under Rattagan:

[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred [citations] unless two conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.

(Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 21, citations omitted.) Defendants argue that the third and fourth causes of action arise from the same nucleus of facts as the contract claims and seek the exact same damages, compensatory damages of \$100,000. (FAC, ¶¶ 25, 32.)

Here, the Court agrees that the claims are duplicative and barred under the economic loss rule as pled. The FAC alleges the same conduct was a breach of the Lease. (FAC, ¶ 12.) The FAC pleads insufficient facts to determine whether the alleged conduct is independent of the duties and rights assumed under the Lease. As the FAC does not allege the terms of the Lease, the Court cannot determine whether the alleged tortious conduct is different from the Lease obligations.

Additionally, the Court agrees with Defendants that the third cause of action fails to allege facts sufficient to constitute defamation. “The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage.” (John Doe 2 v. Superior Court (2016) 1 Cal.App.5th 1300, 1312, citation omitted.) The pleading must include “either the specific words or the substance of” the allegedly defamatory statements.” (Comstock v. Aber (2012) 212 Cal.App.4th 931, 948.) The FAC generally alleges that Defendants said “that plaintiff had concealed material facts from its landlord under the Lease and that plaintiff had failed to comply with its obligations under the Lease.” (FAC, ¶ 23.) This is insufficient to allege the substance of the statements because it does not address which obligations under the Lease the statements pertain to. Further, as argued by Defendants, the FAC leaves uncertain whether Plaintiff is alleging defamation per se or defamation per quod.

Accordingly, the demurrer to the third and fourth causes of action are SUSTAINED with 30 days LEAVE TO AMEND.

Fifth

Cause of Action: Declaratory Relief

Defendants demur to the fifth cause of action on the grounds that it is duplicative and seeks to address past wrongs.

“To qualify for declaratory relief, [a party] would have to demonstrate its action presented two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party’s] rights or obligations.’” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909.) A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. (General of America Insurance Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.) “The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief” (California Insurance Guarantee Association v. Superior Court (1991) 231 Cal.App.3d 1617, 1624), and a duplicative cause of action is subject to demurrer (Palm Springs Villas II Homeowners Association, Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.)

The FAC repeats the same conduct as in the prior claims and alleges that “[a]n actual controversy now exists in that, while plaintiff contends that the defendants, and each of them, have breached the Lease by unreasonably delaying and withholding consent to the proposed repairs to the Property, the defendants have denied the same.” (FAC, ¶ 37.)

The Court agrees that the fifth cause of action is duplicative. As argued by Defendants, the Prayer for Relief reveals that Plaintiff seeks the exact same relief as would be resolved through its contractual claims: “[f]or a judicial declaration and determination as to the rights and liabilities of the parties under the Lease, including, but not limited to, a judicial determination and declaration that the defendants, and each of them, have breached the Lease by unreasonably delaying and withholding consent to plaintiff’s requests to repair the Property.” (Prayer, ¶ 5.)

Accordingly, Defendants’ demurrer to the fifth cause of action is SUSTAINED with 30 days LEAVE TO AMEND.

Motion to Strike

Defendants move to strike portions of the FAC seeking punitive damages. Specifically, Defendants move to strike (1) paragraph 26, (2) paragraph 33, and (3) Prayer for Relief, No. 4.

As the aforementioned sections are contained in or arise out of claims which are sustained with leave to amend based on Defendants' demurrer, Defendants' motion to strike is MOOT.